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Constitution is defined as the collection of legal rules providing a framework for the basic rules for the behaviour of members of a state are called the constitution.

Constitution derives its power and authority directly from the people. It is the supreme law of the land enjoying legal sanctity. Hence, it is above all other laws and Parliament. Constitution is a document that reflects or symbolizes the independence of the country. The constitution is a special document that sets out the role and powers of the organs of the government namely the legislature, judiciary and executive and their relationship with each other.

Importance of constitution

Constitution intends to offset the inefficiencies of the legal systems that form the basis of any modern state by creating a system that upholds the sovereignty of the state and the people.

The constitution of a country establishes the organs of the government—the executive, legislature, judiciary. It defines the powers of the legislature, executive and judiciary and the demarcation of the responsibilities assigned to each of them and regulates the functioning of these organs. Thus, the constitution provides for an efficient government.

Thus, the constitution lays down the basic structure of the government and the principles by which the nation must be governed. It also lays down the goals for the nation and the duties prescribed to the governments as well as the people. It defines the powers of the government and its people.

Historical Background of Indian constitution

Before 1947, India was divided into two main entities – The British India and the Princely states. The British India provinces and the Princely states ruled by Indian princes under subsidiary treaties. After 1947, the two entities merged together to form the Indian Union, but many of the princely states were merged into the British India provinces.

- The first step was taken by the British Parliament to control the affairs of the East India Company in India.
- It designated the Governor of Bengal (Fort William) and created a council of four members to assist him.
- Warren Hastings became the first Governor-General of Bengal.
- There was no separate legislative council.
- It subordinated the Governors of Bombay and Madras to the Governor of Bengal.
- The Supreme Court was established at Fort William (Calcutta) as a court of appeal.
- It prohibited servants of the company from engaging in any private trade or bribes from the natives.
- Court of Directors (the governing body of the company) should report annually to the shareholders.

Pitt's India Act of 1784

- Distinguished between commercial and political functions of the company.
- Court of Directors for Commercial functions and Board of Control for political functions.
- Reduced the strength of the Governor General's council to three members.
- Placed the Indian affairs under the direct control of the British Government.
- The company's territories in India were called "the British possessions".
- Governor's councils were established in Madras and Bombay.

Charter Act of 1813

- The Company's monopoly over Indian trade terminated; Trade opened to British subjects.

- The legislative and executive functions of the Governor-General were separated.
- 6 members in Central legislative council. Four out of six members were members of the provisional governments of Madras, Bombay, Bengal and Agra.
- It introduced a system of open competition as the basis for recruitment of servants of the Company (Indian Civil Service opened for all).

Government of India Act of 1858

- The rule of Company was replaced by the rule of the Crown in India.
- The powers of the British Crown were to be exercised by the Secretary of State for India.
- He was assisted by the Council of India, having 15 members.
- He was vested with complete authority and control over the administration of India through the Viceroy as his agent.
- The Governor-General was made the Viceroy of India.
- Lord Canning was the first Viceroy of India.
- Abolished Board of Control and Court of Directors.

Indian Councils Act of 1861

- It introduced for the first time Indian representation in the executive+legislative council (non-official). 3 Indians entered the council.
- Legislative councils were established in Center and provinces.
- It provided that the Viceroy's Executive Council should have some non-official members while transacting the legislative businesses.
- It accorded statutory recognition to the portfolio system.
- Initiated the process of decentralisation by restoring the legislative powers to Bombay and the Madras Provinces.

3. It changed the name of the Central Legislative Council to the Imperial Legislative Council.
4. The member of the Central Legislative Council was increased to 60.
5. Introduced a system of communal representation for Muslims based on the principle of 'separate electorate'.
6. Indians for the first time members in Viceroy's executive council (Jawahar Lal Nehru, B. R. Ambedkar, C. R. Reddy, and Motilal Nehru, as the law member)

Government of India Act of 1919

- This Act is also known as the Montague-Chelmsford Reforms.
- The Central subjects were demarcated and separated from Provincial subjects.
- The scheme of dual governance, 'Dyarchy', was introduced in the provinces.
- Under the dyarchy system, the provincial subjects were divided into transferred and reserved. On reserved subjects, Governor was supreme.
- The Act introduced, for the first time, bicameralism at the center with the House of Representatives and the Council of States.
- Legislative Assembly with 140 members and Legislative council with 60 members.
- Direct elections.
- The Act also required that the three of the six members of the Council (other than Commander-in-Chief) were to be Indians.
- Provided for the establishment of the Public Service Commission.

Government of India Act of 1935

- The Act provided for the establishment of an All-India Federation of Provinces and the Princely States as units, though the envisaged federation never came into being.
- Three Lists: The Act divided the powers between the Centre and the Provinces into three lists, namely the Federal List, the Provincial List and the Concurrent List.

- It declared India as an Independent and Sovereign State.
- Established responsible Governments at both the Centre and the provinces.
- Designated the Viceroy India and the provincial Governors as the heads).
- It assigned dual functions (Constituent and Legislative) to the Dominion Legislature and declared this dominion legislature as a sovereign body.

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**[SOVEREIGN SOCIALIST SE
DEMOCRATIC REPUBLIC]** and to
to all its citizens :

JUSTICE, social, economic
political;

LIBERTY of thought, expression
faith and worship;

EQUALITY of status and of oppo
and to promote among them all;

FRATERNITY assuring the dig
the individual and the ²[uni
integrity of the Nation];

IN OUR CONSTITUENT ASS
this twenty-sixth day of November,
HEREBY ADOPT, ENACT AND G
OURSELVES THIS CONSTITUTION

1. Subs. by the Constitution (Forty-second Amendment) Act
for "Sovereign Democratic Republic" (w.e.f. 3.1.1977)
2. Subs. by the Constitution (Forty-second Amendment) Act
for "Unity of the Nation" (w.e.f. 3.1.1977)

History of the Preamble to Indian Constitution

- The ideals behind the Preamble to India's Constitution were laid out in **Nehru's Objectives Resolution**, adopted by the Constituent Assembly in 1947.
- Although not enforceable in court, the Preamble states the objectives and acts as an aid during the interpretation of Articles with ambiguous meanings.

Components of Preamble

- It is indicated by the Preamble that the source of authority of the Constitution is the people of India.
- Preamble declares India to be a sovereign, socialist, secular and democratic state.
- The objectives stated by the Preamble are to secure justice, liberty and promote fraternity to maintain unity and integrity of the nation.
- The date is mentioned in the preamble when it was adopted i.e. November 26, 1949.

Key words in the Preamble

- **We, the people of India:** It indicates the ultimate sovereignty of the people. Sovereignty means the independent authority of the State, not being derived from or subject to the authority of any other State or external power.
- **Sovereign:** The term means that India has its own independent authority and is not subject to the dominion of any other external power. In the country, the legislature, executive and judiciary make laws which are subject to certain limitations.
- **Socialist:** The term means the achievement of socialist ends through democratic means. It holds faith in a mixed economy where both private and public sectors co-exist side by side.

It was added in the Preamble by 42nd Amendment, 1976.

Preamble of the Constitution is to promote harmony throughout the nation. The factors for this objective are:

- **Justice:** It is necessary to maintain order in society that is provided by the provisions of Fundamental Rights and Directive Principles of State Policy in the Constitution of India. It comprises three elements, which are political, social, and economic.
- **Social Justice** – Social justice means that the Constitution works for the welfare of all without discrimination on any grounds like caste, creed, gender, religion, etc.
- **Economic Justice** – Economic Justice means no discrimination on the basis of their wealth, income, and economic status. Everyone should be treated equally for an equal position and all people must get opportunities for growth.
- **Political Justice** – Political Justice means all the people have an equal right without any discrimination to participate in political opportunities.
- **Equality:** The term ‘Equality’ means no section of society has any special privilege. All the people have given equal opportunities for everything without any discrimination. Everyone is equal before the law.
- **Liberty:** The term ‘Liberty’ means freedom for the people to do what they want to have political views and behavior in society. Liberty does not mean doing anything; a person can do anything but in the limit set by the law.
- **Fraternity:** The term ‘Fraternity’ means a feeling of brotherhood and attachment with the country and all the people. Fraternity helps in maintaining unity in the nation.

Amendment of the Preamble

The term ‘Socialist’, ‘Secular’, and ‘Integrity’ were added to the preamble by the 42nd Amendment Act, 1976.

‘Socialist’ and ‘Secular’ were added between ‘Sovereign’ and ‘Democratic’.

Assembly elected on the basis of adult franchise’.

The Constituent Assembly was constituted in November 1946 under the Cabinet Mission Plan. The Constituent Assembly held its first meeting on 9 December 1946. Dr. Sachchidananda Sinha, the oldest member, was elected as the temporary President of the Assembly, following the French practice. Later, Dr. Rajendra Prasad was elected as the President of the Assembly. Similarly, both H.C. Mukherjee and V.T. Krishnamachari were elected as Vice-Presidents of the Assembly. Dr. B.R. Ambedkar was selected as the Chairman of the Drafting Committee.

The Constitution as adopted on November 26, 1949, contained a Preamble and seven Schedules. The Preamble was enacted after the entire Constitution was adopted.

Since its inauguration on 26th January 1950, the Constitution has been guiding the path and progress of India. Each and every institution of the State is governed by certain basic rules. State is a political institution. The basic rule of the constitution is the rule of law.

Salient Features of the constitution are as follows:

1. Longest constitution in the world

In its original form, the Constitution contained **395** articles in 22 parts. Currently, the **Constitution** of **India** comprises **470 articles** in 25 parts. It is the longest constitution because:

- It incorporates the experience of all leading constitution.
- It prescribes constitution for the union as well as for the states.
- It incorporates detailed provisions regarding centre –state relations.
- It incorporates special provisions for Jammu Kashmir.
- It includes justifiable and non –justifiable rights.

In addition to these, from the Constitutions of Canada, Australia, Germany, France also it adopted various provisions.

3. Federal System with Unitary Features

The nature of the Indian state is federal, in the sense that the powers are divided between the Union and the state. But in times of emergency Central Government has unitary character. It is federal because:

1. It has two sets of government.
2. There is division of powers between states.
3. There is independent judiciary.

It is unitary because:

1. It is described as "union of states".
2. There is single citizenship.
3. There is single judicial and administrative system.
4. There is integrated machinery for execution of laws.
5. Governors are appointed and removed by President.
6. States depend on Union for aid.
7. During emergency, it can be converted into unitary system.

4. Rigidity and flexibility

Though India has a written constitution; the Indian constitution is not a rigid constitution. It has incorporated the flexible nature in the procedures for amendment and the methods by which the constitution is amended. The procedure for amendment is flexible.

5. Parliamentary system of government

The constitution of India establishes parliamentary form of government in all states. In a Parliamentary form of government, the Prime Minister and Ministers are responsible for all their actions to the government, particularly to the Lower House.

The constitution also provides a list of 11 duties of the citizens, known as **Duties** (Article 51A).

7.Directive principles of state policy

Part IV of the constitution deals with Economic and cultural Rights. justifiable in the court of law. The idea of a 'welfare state' envisaged only be achieved if the states try to implement them with a high sense of

8. Independent judiciary

The constitution provides an independent judiciary (Article 76) where government is carried on in accordance with the provisions of the constitution. The guardian of the liberties and fundamental rights of the citizens. The Judiciary independent from legislature and executive. Judges are free from other organs of the government, so that judges can give judgment without bias. Indian Judiciary is independent as per the norms of separation of power.

9. Adult Suffrage

All adult citizens above 18 are given the right to vote. There are no separate people belonging to different communities. Thus in India there is Universal suffrage without Communal Representation.

10. Single citizenship

The Indian constitution provides a **single citizenship** for all the people residing in the country and there is no separate citizenship for the states (Article 5-1)

11.Bicameral legislatures

Union and Its Territory (Article 1 – 4)

Articles 1 to 4 under Part I of the Constitution explains the Union and its

Article 1:

Article 1(1) states that India, that is Bharat, shall be a Union of States.

Article 1(2) states that the States and the territories will be specified in the

Article 1(3) states that the territory of India will comprise the following -

- i. The territories of the States;
- ii. The Union territories mentioned in the First Schedule; and
- iii. Such other territories as may be acquired.

Article-1 describes India as a ‘Union of States’. Dr. B.R. Ambedkar federation was a “Union” because it was indissoluble, and no State had the Indian Union. The country is one integral unit beside the fact that states for the convenience of administration.

The phrases ‘Union of India’ and ‘Territory of India’ has to be differentiated includes only the States enjoying the Status of being members of the federation the powers with the Union.

The territory of India includes not only the States but also the Union Territories as may be acquired by India in future. First Schedule of the Constitution states and the Territories both.

Article – 2:

names of any State. Parliament follows the following procedures in this regard.

Article-4:

It says that any law referred to in Article-2 or Article-3 will contain amendment of the Ist Schedule and the IVth Schedule necessary to give effect to the provisions of law and may also contain such supplemental, incidental or consequential provisions, as the Parliament may deem necessary.

This Article allows for consequential changes in the Ist Schedule i.e. names of the States of the Union of India and IVth Schedule i.e. a number of seats allotted in the Rajya Sabha. The Constitution will not treat any such law altering existing States or creating new States as an amendment.

At Present India has 28 States and 8 Union Territories. The erstwhile state of J&K has been bifurcated in to two Union Territories (UT) of J&K and Ladakh. The new UTs have been formed under a reorganization act passed by the Parliament on 5-6-2019.

Name of Indian States

S.No	States Name
1	Andhra Pradesh
2	Arunachal Pradesh
3	Assam
4	Bihar
5	Chhattisgarh
6	Goa
7	Gujarat
8	Haryana
9	Himachal Pradesh
10	Jharkhand

23	Tamil Nadu
24	Telangana
25	Tripura
26	Uttar Pradesh
27	Uttarakhand
28	West Bengal

Union Territories

Sl No.	Union Territory
1	Andaman and Nicobar Islands
2	Chandigarh
3	Dadra & Nagar Haveli and Daman & Diu
4	Delhi
5	Jammu and Kashmir
6	Lakshadweep
7	Puducherry
8	Ladakh

Citizenship

Meaning of Citizenship

Citizenship is a legal status acquired by a person in a state, where in he is legal rights and privileges granted by the state and is obliged to obey the imposed by the state. India doesn't permit multiple or dual citizenship.

The Constitution deals with the citizenship from Articles 5 to 11 under Part II.

- (a) on or after the 26th day of January, 1950, but before the 1st day of January, 1957, shall be a citizen of India, irrespective of nationality of his parents
- (b) on or after the 1st day of July, 1987, but before 3rd December 2004, shall be a citizen of India by birth if either of whose parents is a citizen of India at the time of his birth
- (c) After 3rd December, 2004, he acquires citizenship by birth if (i) both of whose parents are citizens of India; or (ii) one of whose parents is a citizen of India and the other is a citizen of India at the time of his birth, shall be a citizen of India by birth.

2. By Descent

- (a) A person born outside India on or after the 26th day of January, 1950, but before the 1st day of January, 1957, shall be a citizen of India by descent, if his father is a citizen of India at the time of his birth.
- (b) A person born outside India on or after the 10th day of December, 1992, but before 3rd December 2004, is considered as a citizen of India if either of his parents is a citizen of India at the time of his birth. After 3rd December 2004, shall be a citizen of India by descent.

A person born outside India on or after 3rd December 2004 shall not be a citizen of India by descent unless his birth is registered at an Indian consulate within one year of the date of his birth.

An application, for registration of the birth of a minor child, to an Indian consulate shall be accompanied by an undertaking in writing from the parents of such minor child that he/she shall not acquire the nationality of another country. Further, a minor who is a citizen of India by virtue of his birth shall cease to be a citizen of India if he does not renounce his nationality of any other country within six months of his attaining full age.

3. By Registration

The Central Government may, on an application, register as a citizen of India (other than an illegal migrant) if he belongs to any of the following categories, namely:-

(g) a person of full age and capacity who has been registered as an overseas for five years, and who is ordinarily resident in India for twelve months before registration.

A person shall be deemed to be of Indian origin if he, or either of his parents, was born in India or in such other territory which became part of India after the August 15, 1947. All categories of persons must take an oath of allegiance before they are registered.

4. By Naturalisation

The Central Government may, on an application, grant a certificate of naturalisation to a person (being an illegal migrant) if he possesses the following qualifications: (a) that he has been a citizen of any country where citizens of India are prevented from becoming subjects of that country by naturalisation;

(b) that, if he is a citizen of any country, he undertakes to renounce the citizenship of that country on the event of his application for Indian citizenship being accepted;

(c) that he has either resided in India or been in the service of a Government in India, or partly the one and partly the other, throughout the period of twelve months immediately preceding the date of his application;

(d) that during the fourteen years immediately preceding the said period of twelve months he has either resided in India or been in the service of a Government in India, or partly the one and partly the other, for periods amounting in the aggregate to not less than eleven years;

(e) that he is of good character;

(f) that he has an adequate knowledge of a language specified in the Constitution ; and

India from the notified date.

For example, when Pondicherry became a part of India, the Government of India (Pondicherry) Order (1962), under the Citizenship Act (1955).

Loss of Citizenship

The Citizenship Act (1955) prescribes three ways of losing citizenship whether prior to it under the Constitution, viz, renunciation, termination and deprivation.

By Renunciation

Any citizen of India of full age and capacity can make a declaration renouncing his Indian citizenship. Upon the registration of that declaration, that person ceases to be a citizen of India. If a declaration is made during a war in which India is engaged, its registration requires the sanction of the Central Government. Further, when a person renounces his Indian citizenship, he loses Indian citizenship. However, when such a child attains the age of majority, he may resume Indian citizenship.

By Termination

When an Indian citizen voluntarily (consciously, knowingly and without duress or compulsion) acquires the citizenship of another country, his Indian citizenship is terminated. This provision, however, does not apply during a war in which India is engaged.

By Deprivation

It is a compulsory termination of Indian citizenship by the Central government.

(a) the citizen has obtained the citizenship by fraud:

(b) the citizen has shown disloyalty to the Constitution of India:

